

ARTICLES OF INCORPORATION

OF

WESTBURY SQUARE TOWNHOMES, INC.

Working transcription of the Articles of Incorporation filed with the Texas Secretary of State on May 31, 1978, as certified by Secretary of State John Hannah, Jr., on February 23, 1994. Corporate name on the charter: WESTBURY SQUARE TOWNHOMES, INC. (the Declaration also refers to WESTBURY SQUARE ASSOCIATION, INC.). This Word copy is for reading and markup. The SOS-certified PDF remains the official source. The source packet also contained later recorded policies that are not part of the Articles and are omitted here.

We, the undersigned natural persons of the age of twenty-one years or more, at least two of whom are citizens of the State of Texas, acting as incorporators of a corporation under the Texas Non-profit Corporation Act, do hereby adopt the following Articles of Incorporation for such corporation:

ARTICLE I

The name of the corporation is WESTBURY SQUARE TOWNHOMES, INC.

ARTICLE II

The corporation is a non-profit corporation.

ARTICLE III

The period of its duration is perpetual.

ARTICLE IV

Subject to Part IV of the Texas Miscellaneous Corporation Laws Act, the purposes for which the corporation is organized are:

To operate, manage, maintain and administer the affairs of WESTBURY SQUARE TOWNHOMES, a condominium project established pursuant to Article 1301a of the Texas Revised Civil Statutes and that certain Declaration and Master Deed dated March 20, 1978, recorded in Volume 20, Page 1, of the Condominium Records of Harris County, Texas (the “Declaration and Master Deed”).

To enter into and perform any contract and to exercise all powers which may be necessary or convenient to the operation, management, maintenance and administration of the affairs of WESTBURY SQUARE TOWNHOMES, INC. as a condominium project in accordance with the Declaration and Master Deed.

ARTICLE V

Each Owner shall be a member of the corporation and no other person or entity shall be entitled to membership. No Owner shall be required to pay any consideration whatsoever solely for his membership in the corporation.

The share of an Owner in the funds and assets of the corporation cannot be assigned, pledged or transferred in any manner except as an appurtenance to his Unit in the Condominium Project.

Each Owner shall be entitled to a vote, the value of which shall equal the total of the percentages assigned to the Units owned by such Owners as set forth in the Declaration and Master Deed.

No Owner, other than the Developer, shall be entitled to vote at any meeting of the corporation until he has presented evidence of ownership of a Unit in the Condominium Project to the corporation. The vote of each Owner may only be cast by such Owner or by a proxy given by such Owner to his or her spouse or to another Owner or to his duly authorized representative. If title to a Unit shall be in the name of two or more persons as Owners, any one of such Owners may vote as the Owner of the Unit at any meeting of the corporation and such vote shall be binding on such other Owners who are not present at such meeting until written notice to the contrary has been received by the corporation in which case the unanimous action of all such Owners (in person or by proxy) shall be required to cast their vote as Owners. If two or more of such Owners are present at any meeting of the corporation, then unanimous action shall also be required to cast their vote as Owners.

An Owner in default of any provisions of the Declaration and Master Deed shall not be entitled to vote at any meeting of the corporation so long as such default is in existence.

The terms “Owner”, “Unit”, “Condominium Project” and “Developer”, as used herein, shall have the same meaning as set forth in the Declaration and Master Deed.

ARTICLE VI

The street address of the initial registered office of the corporation is 17 South Briar Hollow Lane, Suite 300, Houston, Texas 77027, and the name of the initial registered agent at such address is MICHAEL W. WOOD.

ARTICLE VII

The number of directors of the corporation shall be fixed by the by-laws of the corporation but shall not be less than three (3). The number of directors constituting the initial board of directors of the corporation is three (3), and the names and addresses of the persons who are to serve as the initial board of directors are:

Mike Zullo

2665 30th St., Suite 211

Santa Monica, California 90405

Gene Voorhees

3465 Torrance Blvd., Suite D

Torrance, California 90503

W. Lockwood Haight

2665 30th St., Suite 211

Santa Monica, California 90405

ARTICLE VIII

The name and street address of each incorporator is:

Billie Strong

3314 Dalmation

Houston, Texas 77045

Mary Sumler

10511 Huntington Place Drive

Houston, Texas 77072

Sherrie Jo Loerwald
8501 Broadway, #2094
Houston, Texas 77061

IN WITNESS WHEREOF, we have hereunto set our hands this 30th day of May, 1978.

BILLIE STRONG
MARY SUMLER
SHERRIE JO LOERWALD

NOTARY ACKNOWLEDGMENT

THE STATE OF TEXAS

COUNTY OF HARRIS

I, Carol M. Bludau, a Notary Public, do hereby certify that on the 30th day of May, 1978, personally appeared before me BILLIE STRONG, MARY SUMLER and SHERRIE JO LOERWALD, who each being by me first duly sworn, severally declared that they are the persons who signed the foregoing document as incorporators and the statements therein contained are true.

IN WITNESS WHEREOF, I have hereunto set my hand and seal the day and year above written.

Carol M. Bludau
Notary Public in and for Harris County, Texas
My Commission Expires June 30, 1978

SOS certification (cover). The State of Texas, Secretary of State, certified on February 23, 1994, that the attached is a true and correct copy of the Articles of Incorporation of WESTBURY SQUARE TOWNHOMES, INC., filed May 31, 1978. Signed John Hannah, Jr., Secretary of State.

Note on Declaration citation. Article IV of the Articles cites a Declaration and Master Deed dated March 20, 1978, Volume 20, Page 1. The recorded Declaration provided in this project is dated and recorded May 19, 1978, Volume 70, Page 1, Clerk File P606087. Counsel should reconcile that citation if these Articles are used in an amendment package.